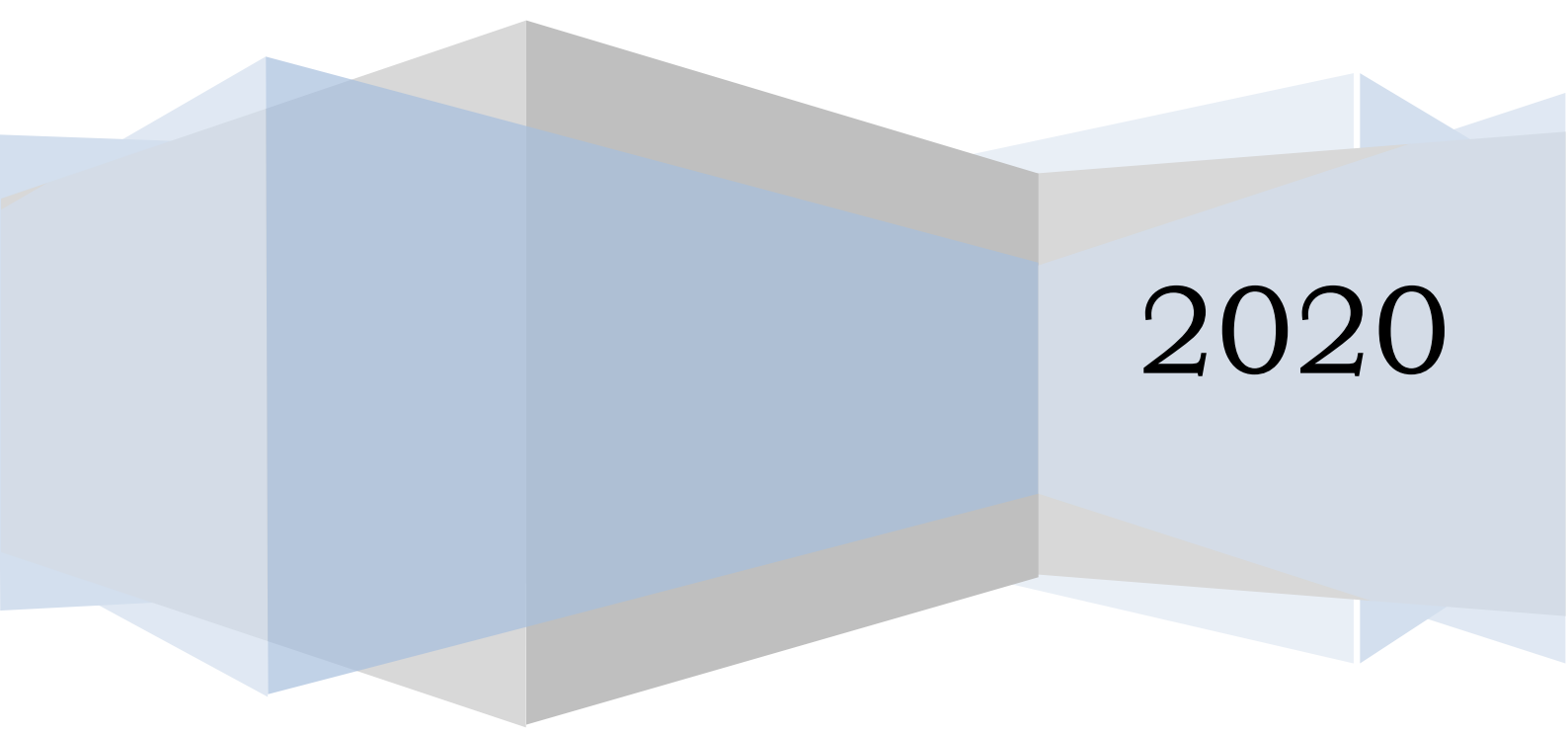


LAHORE DEVELOPMENT AUTHORITY

DRAFT OF LDA LAND USE REGULATIONS 2020



2020

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1. Definitions

Same as given in LDA Land Use Rules 2020.

2. Land Use Classes

(1) There shall be following land use classes:

- (a) residential;
- (b) commercial;
- (c) industrial;
- (d) institutional;
- (e) mixed use;
- (f) open space & recreational;
- (g) peri-urban;
- (h) special development zone;
- (i) agricultural; and
- (j) notified area.

(2) The land use in each land use class shall be as under:

- (a) **Permitted use:** The land use which is allowed in each land use class under the rules.
- (b) **Permissible use:** The land use, though not permitted, may be allowed by the planning and design committee subject to the payment of the fee.
- (c) **Prohibited use:** The land use, which is neither permitted nor permissible.

(3) The Authority shall ensure that the land use provisions under the permitted, permissible and prohibited use are strictly followed in each land use class.

(4) The Planning and Design Committee may grant permission for permissible use listed under each land use class subject to the special rules, regulations, restrictions, payment of fee where applicable under the rules and the relevant policy.

(5) The Authority shall not allow a person to use a property in any land use class for a purpose which is neither permitted nor permissible.

(6) No person shall be authorized to use land or construct a building except in accordance with the land use approved for that particular land.

(7) The Planning and Design Committee may demand no objection certificate where deemed necessary or other documents where deemed necessary.

(8) The requirement of Right of Way given in permissible uses will be applicable in Lahore district, whereas in other districts the R.O.W will be 20 feet.

Chapter II

Land Use of Residential Area

(a) Permitted Use

- (i) house;

- (ii) apartment building;
- (iii) park and playground;
- (iv) graveyard or place of burial;
- (v) horticultural nursery;
- (vi) urban farm;
- (vii) old age home or orphanage; and
- (viii) urban forest.

(b) Permissible Use

Permissible Land Uses of Residential Area				
Sr. No.	Permissible Uses	Criteria	Right of way	Description
i.	<u>Corner or neighborhood shop or convenience shop</u>	(i) Not more than 450 sq. ft. on specified plots in the scheme plan or corner plots in controlled areas. (ii) Uses to be allowed in corner shops as follows: - General grocery shop, vegetable and fruit shop, barbershop, cobbler shop, dairy shop, naan bread tandoor, tea café, tire shop, cycle repair shop, meat shop, pharmacy, newspaper shop, tobacco shop, sweets shop, tailor, laundry washer man (dhobi)shop, household technician shop, plumber shop, electrician shop or uses that Authority decides as per prevailing building and zoning regulations.	Min 30 feet road	A room or part of building on ground floor used or operated as a convenience shop for daily needs/ purposes.
ii.	<u>Place of worship or prayer or mosque</u>	(i) No conversion fee is required. (ii) NOC from relevant department such as district administration, etc.	-	Area/place reserved for worship communal prayers etc.

Permissible Land Uses of Residential Area

iii.	<u>Day-care centre and pre-school</u>	(i) Plot is not less than 10 Marla and max 2 Kanal (ii) No more than two will be allowed within 250 meter radius	(i) Min 40 feet road in approved scheme (ii) Min 20 feet in established built up area and other districts	An establishment offering day-care to pre-school children, enabling their parents to work full time or have extended relief if child care is a not manageable.
iv.	<u>Rehabilitation centres for disabled</u>	(i) Plot is not less than 10 Marla and max 2 Kanal (ii) No more than two will be allowed within 250 meter radius	(i) Min 40 feet road in approved scheme (ii) Min 20 feet in established built up area and other districts	-
v.	<u>Primary and junior school</u>	(i) Plot is not less 1 Kanal (ii) Parking Requirement as prevailing per Building Regulations (iii) No more than two will be allowed within 500 meter radius (iv) Play area facility min 20% (Open / Covered) of the plot area to be provided in the building plan. (v) Plot should be in the walking distance.	(i) Min 30 feet road in approved scheme (ii) Min 20 feet in established built up area and other districts	A premises having education and playing facilities for students upto 5th standard

Permissible Land Uses of Residential Area

vi.	<u>Coaching centre or academy for education purpose</u>	(i) Plot is not less than 4 Kanal in new areas and 2 Kanals in established built up area (ii) NOC from TEPA/ Relevant Agency (iii) Open Area 20% of the plot area to be provided in the premises/building plan. (iv) No more than two will be allowed within 1 km radius	(i) Min 40 feet road in approved scheme (ii) Min 20 feet in established built up area and other districts	A premises having education facilities for students without hostels / boarding.
vii.	<u>Secondary and higher secondary schools</u>	(i) Plot is not less than 4 Kanal in other than established built up areas and 2 Kanals in established built up area (ii) NOC from TEPA/ Relevant Agency (iii) Playground facility min 20% (open/covered) of the plot area to be provided in the premises/building plan. (iv) No more than two will be allowed within 1 km radius	(i) Min 40 feet road in approved scheme (ii) Min 15 feet in established built up area and other districts	A premises having education and playing facilities for students without hostels / boarding.
viii.	<u>Dispensary</u>	Not more than 5 Marla	(i) Min 30 feet road in approved scheme (ii) No restriction in established built up area.	A place where medicine or medical or dental treatment is dispensed with two beds maximum for emergency which may include indoor pharmacy

Permissible Land Uses of Residential Area				
ix.	<u>Guest house</u>	(i) Plot is not less than 2 Kanal (ii) Plot not less than 1 Kanal in established built-up area	(i) Min 40 feet road in other than established areas (ii) Min 20 feet road in established areas	Premises where housing of inhabitant is limited for short duration.
x.	<u>Indoor sports facility</u>	No Plot size restriction	No road restriction	A premise providing facilities of indoor games/sports and gymnasium,
xi.	<u>Community centre or club</u>	Area 4 Kanal	(i) Min 40 feet road (ii) Other districts 20 feet road	A place where people from a particular neighbourhood can meet for social events, education classes, boarding, gym or recreational activities excluding marriage/banquet halls.
xii.	<u>Automated Teller Machine (ATM)</u>	Attached to a building	Min 20 feet road	A premise for taking out cash.
xiii.	<u>Poly-clinics</u>	(i) Min area 10 Marla in existing built up area (ii) 1 Kanal in controlled area except established built up area (iii) 2 Kanal and above with an emergency ward in designated civic centre/neighbourhood centres etc.	(i) Min 40 feet road in other than established built up areas (ii) Min 30 feet road in other districts (iii) Min 20 feet in established built up areas	A premise providing medical facilities of general or specialized nature for treatment of indoor and outdoor patients. With consultants clinics and diagnostics, emergency ward on ground floor

Permissible Land Uses of Residential Area				
				and on upper floor and operating labour rooms.
xiv.	<u>Parking plaza or parking Site</u>	(i) Min 2 Kanal for Parking Plaza (ii) Min 5 marla for parking site / lot / Mechanical Parking	Min 30 feet road	A premise used for parking of vehicles may be run on commercial or non-commercial basis.
xv.	<u>Diplomatic enclaves or diplomatic office</u>	(i) Notified by Interior Ministry (ii) Min 4 Kanal Area (iii) NOC from Police dept. (iv) Proper parking arrangement (v) Enclosure and security plan	Min 60 feet road	Diplomatic Enclave is a special zone for housing diplomatic missions located in the city.
xvi.	<u>Area Development Project</u>	Plot size not less than 24-Kanal and not more than 200-Kanal	Min 80 feet road	A premises used for all landuses except industrial landuses.
xvii.	<u>Educational and research institution (College)</u>	Standards as per Education Board	(i) Min 80 feet Road (ii) Min 30 feet road for established area and other district	A premise having education and playing facilities for students upto Bachelors and or Masters
xviii.	<u>Educational and Research Institution (University)</u>	Standards as per HEC	Min 80 feet road	A high-level educational institution in which students study for degrees and academic research is done.

Permissible Land Uses of Residential Area

xix.	<u>Library</u>	Min 10 Marla	Min 20 feet road	A premises or a specified place having a large collection of books for reading and reference for general public or specific class.
xx.	<u>Government or semi-government office</u>	Min 4 Kanal	(i) Min 60 feet road (ii) Other districts 30 feet road	A premises used for government office (Federal, provincial, local agencies, etc.)
xxi.	<u>Hospital</u>	(i) Min 2 Kanal in Lahore District and min 1 Kanal in other districts (ii) Licenses from concerned competent authorities	(i) Minimum 50 feet road (ii) Other districts 30 feet road	A premises providing medical facilities of general or specialized nature fortreatment of indoor and outdoor patients and provision of emergency and general wards.
xxii.	<u>Electric vehicle charging station</u>	Min 2 parking bays at ninety degree or parallel	No road width restriction	-
xxiii.	<u>Professional Offices</u>	(i) Min 2 Kanal plot area and (ii) Max building height of 48 feet.	Min 30 feet road	A consultant is a professional who provides expert advice in a particular area such as security management, education, accountancy, law, regulatory compliance, human resources,

Permissible Land Uses of Residential Area				
				marketingfinance, health care, engineering, science or any of many other specialized fields.
xxiv.	<u>Post office, fire station, rescue and emergency services offices</u>	-	Min 40 feet road	A premise dedicated to basic uses of necessity like police station, post office and fire station in public sector.

3. Land Use of Commercial Area

(a) Permitted Use

- (i) multi-storey building;
- (ii) residential apartment;
- (iii) court or tribunal comprising of the land not less than two kanal;
- (iv) mixed use building;
- (v) shopping mall;
- (vi) departmental store;
- (vii) shops or group of shops other than Lahore District;
- (viii) coaching centre or academy for educational purpose and extra-curricular activities such as martial-arts, school or health club;
- (ix) office;
- (x) financial institution;
- (xi) park, memorial and monument;
- (xii) hotel or motel;
- (xiii) car showroom;
- (xiv) boutique or garment outlets or beauty parlour;
- (xv) restaurant;
- (xvi) social welfare institutions such as community centre, art gallery and museum;
- (xvii) parking plaza or parking site;
- (xviii) police station, post office, fire station, rescue and emergency services offices;
- (xix) place of worship or prayer;
- (xx) hospital;
- (xxi) hostel or guest house or lodging house;
- (xxii) bakery or confectionery;
- (xxiii) clinic or polyclinic;
- (xxiv) courier service or logistics office;

- (xxv) private telephone exchange or cable operation or mobile franchise offices;
- (xxvi) marriage, banquet hall, marquee as defined in the prevailing Lahore Development Authority Building and Zoning Regulations;
- (xxvii) athletic club, gymnasium, fitness centre or indoor sport facility;
- (xxviii) day-care centre or pre-school;
- (xxix) research and development centres or library;
- (xxx) primary and junior school;
- (xxxi) secondary and higher secondary school;
- (xxxii) educational and research institution (college);
- (xxxiii) educational and research institution (university);
- (xxxiv) taxi stand and bus stop such as class 'C' stand not less than 32 kanal in the District Lahore and not less than 8 kanal in other districts, class 'D' stand not less than 4 kanal and provision of no objection certificate from the Regional Transport Authority for both 'C' and 'D' class stands;
- (xxxv) electric vehicle charging station;
- (xxxvi) commercial on ground floor and office-cum-residential area on upper floor; and
- (xxxvii) Urban forest area.

(b) Permissible Use

Permissible Land Uses of Commercial Area				
Sr. No.	Permissible uses	Criteria	Right of Way	Description
i.	<u>Technical and vocational institution</u>	Plot is not less than 10 Marla	N.A	A premises with facilities for training in discipline of technical nature which includes technical school or centre
ii.	<u>Cinema or Cineplex or Multiplex</u>	Plot is not less than 4 Kanal	N.A	A premises with facilities for projection of movies and stills with a covered space to seat audience

Permissible Land Uses of Commercial Area

iii.	<u>Theater, auditorium, concert hall or exhibition hall or cultural institution</u>	Plot is not less than 4 Kanal	N.A	Premises used for collaborative form of fine art that uses live performers, typically actors or actresses, to present the experience of a real or imagined event before a live audience.
iv.	<u>Seasonal commercial fare site</u>	Plot is not less than 8 Kanal	Min 100 feet road	A premises used for business that operates during only part of the year or experiences seasonal peaks
v.	<u>Stadium</u>	Plot is not less than 30 Kanal	Min 50 feet road	A premises for stadium with play area and spectator seating including related facilities for players.
vi.	<u>Amusement Park & Play land</u>	(i) For Amusement Park: Plot is not less than 15-Acre and for Play land: Plot is not less than 2-Acre	(i) For Amusement Park: Min 50 feet road & for Play land: Min 30 feet road	An area used for recreation or amusement; playground or amusement park or Bowling Alley
vii.	<u>Petrol pump, gas station, LPG or LNG storage or filling station</u>	Plot is not less than 2 Kanal	(i) Min 60 feet road in Lahore District (ii) Min 40 feet road in other districts	A premises for sale of petroleum products to consumers. It may include

Permissible Land Uses of Commercial Area

			(iii) For one way road in Lahore Min 40 feet	servicing of automobiles.
viii.	<u>Bus terminal</u>	Plot size and requirements as per Regional Transport Authority Rules or regulations	-	A premises used by a public transport agency or any other bus service company for parking maintenance and repair of buses. This may or may not include a workshop.
ix.	<u>Loading and unloading requirements of all uses in particular permitted or permissible area</u>	-	Min 40 feet road	-
x.	<u>Weighbridge</u>	-	Min 30 feet road	A space used for weighing vehicles, set on the ground to be driven on to.
xi.	<u>Service industry without nuisance</u>	Min 4 Marla	Min 30 feet road & 20 feet in other districts	A premises essentially having repair shops for automobiles, electrical appliances, software houses, call centres, and building material, etc. to provide essential

Permissible Land Uses of Commercial Area

				services to neighbouring residential areas.
xii.	<u>Wholesale market</u>	Not less than 2 Kanal	Min 60 feet road	-
xiii.	<u>Second hand goods market</u>	(i) Area of plot is not less than 10 Marlas (ii) 5 Marlas in other districts	(i) Min 40 feet road (ii) Min 30 feet road in other districts	-
xiv.	<u>Coal, wood or timber yard</u>	(i) Area of plot is not less than 10 Marlas (ii) 5 Marlas in other Districts	(i) Min 40 feet road (ii) Min 30 feet road in other districts	Open space for storage & trading of coal/ wood/ timber
xv.	<u>Television or other studio</u>	Plot is not less than 2 Kanal	Min 30 feet road	A premises with facilities for recording, Radio and Television above broadcast and transmission of news Television station, station and other programs through the watch & ward respective medium.
xvi.	<u>Auto workshop and service garage and service station</u>	Plot is not less than 1Kanal	Min 30 feet road	An establishment where automobiles are repaired by auto mechanics and technicians.

Permissible Land Uses of Commercial Area				
xvii.	<u>Storage place, cold storage and warehouse</u>	Plot is not less than 1 Kanal	Min 30 feet road	A premises where raw materials goods may be stored prior to their distribution for sale.
xviii.	<u>Printing press</u>	Min 10 Marla	Min 30 feet road	A premises used to operate the machine by which text and images are transferred to paper or other media by means of ink.
xix.	<u>Base trans receiver station or communication tower</u>	(i) Plot is not less than 10 Marla (ii) Approval from Telecommunication s Authority	Min 40 feet road	A premises used for installation of towers for communication purposes
xx.	<u>Area Development Project</u>	Plot size not less than 24-Kanal and not more than 200-Kanal.	Min 60 feet road.	A premises used for mix landuses except industrial landuses

4. Land Use of Industrial Area

- (1) For approved industrial scheme or estate, the permitted, permissible and prohibited land use shall be in accordance with the approved scheme of an industrial area. In case permitted & permissible uses are not defined in the approved scheme, then permitted, permissible and prohibited uses of declared area shall be applicable as per Rule 6 of LDA Land Use Rules 2020.
- (2) For declared industrial area, the permitted, permissible and prohibited land use shall be as under:

(a) Permitted Use

- (i) cottage, light and medium industry, heavy or large industry;
- (ii) warehouse, storage or distribution centre;
- (iii) building material store;
- (iv) cold storage and ice factory;

- (v) petrochemicals, petroleum and gas products storage or godown;
- (vi) loading and unloading space;
- (vii) parking lot;
- (viii) industrial park or estate;
- (ix) police station, fire station and post office;
- (x) bank or automated teller machine (ATM);
- (xi) industrial research institute;
- (xii) treatment or recycling plant;
- (xiii) grid station;
- (xiv) power plant;
- (xv) vocational training institute; and
- (xvi) urban forest area.

(b) Permissible Use

Permissible Land Uses of Industrial Area				
Sr. No.	Permissible uses	Criteria	Right of Way	Description
i.	<u>Petrol pump, gas station, LPG or LNG storage or filling station</u>	Plot is not less than 2 Kanal	(i) Min 80 feet road in Lahore district (ii) Min 50 feet road in other districts	A premises for sale of petroleum products to consumers. It may include servicing of automobiles.
ii.	<u>Essential residential, commercial, health and educational facility for workers or employees</u>	Within the premises or separated from industrial units	Min 40 feet road of main industry	Residential apartment building(s) for workers/employees within premises or separate from the industry
iii.	<u>Oil Depot</u>	Min 4 Kanal	Min 40 feet road	Oil Storage is the process of storing oil products such as crude oil and refined petroleum in storage tanks

Permissible Land Uses of Industrial Area				
iv.	<u>Restaurant</u>	(i) Min 4 Marla	Min 30 feet road	A premises used for serving food items on commercial basis including cooking facilities. It may have covered or open or both for sitting arrangement.
v.	<u>Hospital</u>	(i) Min 2 Kanal in Lahore district (ii) Min 1 Kanal in other districts	Min 40 feet road	A premises providing medical facilities of general or specialized nature for treatment of indoor and outdoor patients and provision of emergency and general wards.
vi.	<u>Auto workshop, service garage and service station</u>	-	Min 30 feet road	An establishment where automobiles are repaired by auto mechanics and technicians.
vii.	<u>Incineration Plant</u>	-	Min 30 feet	-

(c) Prohibited Use

The land use for storing, packing, pursing, cleaning, preparing, and manufacturing of blasting powder, ammunition, fireworks, gun powder, sulphur, mercury, gases, nitro-compounds, phosphorous, dynamite, explosives, bombs or any other obnoxious or hazardous material shall not be permissible in a declared industrial area.

5. Land Use of Institutional Area

(a) Permitted Use

- (i) educational and research institution (college);
- (ii) educational and research institution (university);
- (iii) secondary and higher secondary schools;
- (iv) library;
- (v) language centre;
- (vi) religious institution;
- (vii) park, memorial, monument or play ground;
- (viii) government or semi-government office;
- (ix) social welfare institution such as community centre, art gallery, museum and auditorium;
- (x) local and zonal municipal office;
- (xi) police station, fire station or post office;
- (xii) hospital;
- (xiii) veterinary hospital;
- (xiv) clinical laboratory;
- (xv) shelter home;
- (xvi) pannahgahh;
- (xvii) convention centre;
- (xviii) private office;
- (xix) day-care centre or pre-school;
- (xx) old-age home or orphanage; and
- (xxi) urban forest area.

(b) Permissible Use

Permissible Land Uses of Institutional Area				
Sr. No.	Permissible uses	Criteria	Right of Way	Description
i.	<u>Hotel or</u> <u>Motel</u>	(i) Min 2 Kanal (i) Max 1 Kanal	(i) Min 60 feet road in established area and other districts (i) Min 60 feet road in approved scheme	A premises used for lodging of 15 persons or more on payment with or without meals

Permissible Land Uses of Institutional Area				
ii.	<u>Guest house</u>	Plot is not less than 1 Kanal	(i) Min 60 feet road (ii) Other districts 40 feet	Guest house is premises where housing of inhabitant is limited for short duration.
iii.	<u>Restaurant</u>	(i) Min 4 Marlas in established area and other areas (ii) Min 4 Marlas in approved scheme	(i) Min 40 feet road in established area and other districts (ii) Min 60 feet road in approved scheme	A premises used for serving food items on commercial basis including cooking facilities. It may have covered or open or both for sitting arrangement.
iv.	<u>Athletic club, gymnasium, fitness centre or indoor sport facility</u>	Plot is not less than 10 Marla	(i) Min 30 feet road in established area and other districts (ii) Min 40 feet road in approved scheme	A Premises used for gymnastics, games, and other physical exercise.
v.	<u>Banks or Automated Teller Machine (ATM)</u>	(i) Min area 4 Marla (i) Attached to a building	(i) Min 30 feet road in established area and other districts (ii) Min 40 feet road other than established area	A premises for office to perform banking function and operations.
vi.	<u>Cinema</u>	Plot is not less than 4Kanal	(i) Min 60 feet road in established area and other districts (ii) Min 60 feet road in approved scheme	A premises with facilities for projection of movies and stills with a covered space to seat audience

Permissible Land Uses of Institutional Area				
vii.	<u>Petrol pump, gas station, LPG or LNG storage or filling station</u>	Plot is not less than 2 Kanal	(i) Min 80 feet road in Lahore district (ii) Min 50 feet road in other districts	A premises for sale of petroleum products to consumers. It may include servicing of automobiles.
viii.	<u>Departmental Store</u>	(i) Area 2 Kanal & above in approved schemes (ii) Area 1 Kanal and above in established built up area	(i) Min 40 feet road in established area and other districts (ii) Min 80 feet road in approved scheme	A department store is a large shop which sells many different kinds of goods & organized into separate department
ix.	<u>Taxi or bus stand</u>	As per Standards of Regional Transport Authority	As per RTA Standards	A premises used by public to park the buses/taxi for short duration to serve the population. It may include the related facilities for passengers
x.	<u>Amusement Park or Play land</u>	Min 4 Kanal	(i) Min 100 feet road (ii) Other districts 40 feet	An area used for recreation or amusement
xi.	<u>Hostel</u>	Min area 1 kanal	(i) Min 30 feet road (ii) Other districts 20 feet	-
xii.	<u>Research and development centres</u>	Min area 2 kanal	(i) Min 40 feet road (ii) Other districts 40 feet	A premises providing facilities for research and development for any specific field
xiii.	<u>Residential apartment</u>		Min 30 feet Road	<u>Apartment:</u> means a dwelling unit located in a

Permissible Land Uses of Institutional Area

				multi-storey building meant to provide habitation. <u>Apartment Building:</u> Means a Multi-storey building containing more than two apartments sharing common staircase lift or access spaces.
xiv.	<u>Marriage, banquet hall or</u> <u>Marquees</u>	(i) Plot is not less than 4 Kanal (ii) Parking requirement as per prevailing building bylaws of LDA (iii) NOC from TEPA (iv) area restriction is as per building bylaws of LDA (i) Plot not less than 8 Kanal (ii) Parking requirement as per prevailing building and zoning regulations (iii) NOC from TEPA (iv) Area restriction is as per building bylaws of LDA	(i) Min 40 feet road in established area and other districts (ii) Min 50 feet road other than established area (i) Min 40 feet road in established area and other districts (ii) Min 50 feet road other than established area	A premises to hold public hall for public gathering, community functions, gatherings, marriages, etc.
xv.	<u>Area Development Project</u>	Plot size not less than 24-Kanal and not more than 200-Kanal	Min 80 feet road	A premises used for mix landuses except industrial landuses

6. Land Use of Mixed Area

(a) Permitted Use

- (i) commercial on ground floor and offices-cum-residential area on upper floor;
- (ii) place of worship;
- (iii) parking plaza or parking site;
- (iv) amusement park or play land; and
- (v) park, memorial, monument or playground.

(b) Permissible Use

Permissible Land Uses of Mixed Use				
Sr. No.	Permissible uses	Criteria	Right of Way	Description
i.	<u>Educational institution</u>	Plot is not less than 4 Kanal	(i) Min 30 feet road in established area and other districts (ii) Min 30 feet road in approved scheme	A premises having education and playing facilities for students upto 5th standards
ii.	<u>Health institution</u>	Min 4 Kanal	(i) Min 30 feet road in established area and other districts (ii) Min 30 feet road in approved scheme	A premises providing medical facilities of general or specialized nature for treatment of indoor and outdoor patients.
iii.	<u>Auto workshop</u>	(i) Plot is not less than 02 Marla (ii) NOC from WASA	(i) Min 30 feet road in established area and other districts (ii) Min 30 feet road in approved scheme	An establishment where automobiles are repaired by auto mechanics and technicians.
iv.	<u>Marriage, banquet hall or</u>	(i) Plot is not less than 4 Kanal (ii) Parking Requirement for specific use (iii) NOC from TEPA (iv) Area restriction is as per building bylaws of LDA	(i) Min 60 feet road in established area and other districts (ii) Min 80 feet road other than established area	A premises to hold public hall for public gathering, community functions, gatherings, marriages, etc.

Permissible Land Uses of Mixed Use				
	<u>Marquees</u>	(i) Plot not less than 8 Kanal (ii) Parking requirement as per building and zoning regulations (iii) NOC from TEPA (iv) Area restriction is as per building by-laws of LDA	(i) Min 60 feet road in established area and other districts (ii) Min 80 feet road other than established area	
v.	<u>Library</u>	Min 10 Marlas area	Min 20 feet road	A premises having a large collection of books for reading and reference for general public or specific class.
vi.	<u>Hotel or motel</u>	(i) Min 2 Kanal for Hotel (ii) Min 1 Kanal for Motel	(i) Min 30 feet road in established area and other districts (ii) Min 40 feet road in approved scheme	A premises used for lodging of 15 persons or more on payment with or without meals
vii.	<u>Guest house</u>	(i) Plot is not less than 1 Kanal	Min 40 feet road	Guest house is premises where housing of inhabitant is limited for short duration.
viii.	<u>Petrol pump, gas station, LPG or LNG storage or filling station</u>	Plot is not less than 2 Kanal	(i) Min 60 feet road in Lahore District (ii) Min 40 feet road in other districts (iii) For one way road in Lahore Min 40 feet	A premises for sale of petroleum products to consumers. It may include servicing of automobiles.
ix.	<u>Shopping mall</u>	(i) Min Area 2 Kanal in established area (ii) Min Area 4 Kanal in approved scheme	(i) Min 40 feet road in established area and other districts (ii) Min 50 feet	A premise containing a variety of stores and shops in a series of

Permissible Land Uses of Mixed Use				
			road other than established area	connected or adjacent buildings or in a single large building.
x.	<u>Area Development Project</u>	Plot size not less than 24-Kanal and not more than 200-Kanal	Min 80 feet road	A premises used for mix landuses except industrial landuses

7. Land Use of Open Space and Recreational Zone

(a) Permitted Use

- (i) bird sanctuary;
- (ii) botanical garden;
- (iii) park, memorial, monument or play ground;
- (iv) forest;
- (v) orchard;
- (vi) picnic hut;
- (vii) plant nursery;
- (viii) place of worship;
- (ix) joy land or play land;
- (x) farm;
- (xi) recreational club or resort;
- (xii) shooting range;
- (xiii) swimming pool;
- (xiv) library; and
- (xv) zoological garden.

8. Land Use in Peri-Urban Area

- (1) The Authority shall specify land use of various parcels of land falling in a peri-urban area.
- (2) **The permitted, permissible and prohibited use of the same categories shall strictly apply to the specified land use under provisions of the *prevailing Lahore Development Authority Master Plan Rules.***
- (3) The peri-urban area shall be considered residential until the land use is specified.
- (4) The conversion, if allowed, shall be subject to payment of conversion fee under the rules.

9. Special Development Zone

- (1) The Authority shall specify land use of various parcels of land falling under special development zone.
- (2) The Authority shall notify the permitted, permissible and prohibited use, restriction and scale of fee as part of the building regulations in a zone.

- (3) The Authority may declare any specific use or number of uses in a special development zone and it shall be incorporated in the master plan.

10. Agricultural Area

- (1) The Authority shall notify the area falling outside the peri-urban area as agriculture area.
- (2) The permitted and permissible land use of the Agriculture is as under:

(a) Permitted Use

- (i) crop;
- (ii) orchard;
- (iii) pasture land;
- (iv) livestock such as dairy or poultry farm;
- (v) forest;
- (vi) nursery or a green house, horticulture;
- (vii) tube well;
- (viii) existing rural settlement or village;
- (ix) place of worship or prayer;
- (x) place of burial or cremation;
- (xi) agricultural machinery workshop;
- (xii) basic health unit;
- (xiii) public or private recreational park;
- (xiv) corner shop less than 450 square feet on ground floor;
- (xv) house within and contiguous to rural settlement;
- (xvi) farm house within the boundaries of a farm if the minimum area of the farm is not less than four kanals. Farm house on a plot of an area not less than 4 kanals and coverage of residential building upto 30% for total area of the site area upto 40 kanal (for area above 40 kanals the coverage will not be more than 30% of 40 kanal);
- (xvii) warehouse on land parcel measuring area up to 10,000 square feet with right of way of road not less than 60feet used for general storage activities of agricultural goods which are non-hazardous in nature;

(b) Permissible Use

Permissible Land Uses in Agricultural Area				
Sr. No.	Permissible Uses	Criteria	Right of Way	Description
i.	<u>Brick kiln, milk chilling and pasteurization</u>	-	Min 20 feet	-
ii.	<u>Animal husbandry clinic</u>	-	Min 20 feet	Animal husbandry clinic is concerned with animals that are raised for meat, fibre, milk, eggs, or other

Permissible Land Uses in Agricultural Area				
				products. It includes day-to-day care, selective breeding and the raising of livestock.
iii.	<u>Country club</u>	-	Min 30 feet	A private club in a rural area or in the outskirts of a town, offering recreational sports activities.
iv.	<u>Zoo or wildlife park</u>	-	Min 30 feet	An establishment which maintains a collection of wild animals, typically in a park or gardens, for study, conservation, or display to the public.
v.	<u>Petrol pump, gas station, LPG or LNG storage or filling station</u>	Plot is not less than 2 Kanal	(i) Min 80 feet road in Lahore district (ii) Min 50 feet road in other districts	A premises for sale of petroleum products to consumers. It may include servicing of automobiles.
vi.	<u>Base trans receiver station tower</u>	-	Min 30 feet	BTS is a Base Station. The part of the cellular network that connects wireless (from your phone) to the rest of the world.
vii.	<u>Community facility or public utility</u>	-	-	-

Permissible Land Uses in Agricultural Area				
viii.	<u>Bus terminal or truck stand</u>	(i) `C' class bus terminal not less than 32 kanals in District Lahore and not less than 8 kanals in other districts (ii) `D' class bus terminal not less than 4 kanals)	As per RTA Rules	-
ix.	<u>Fruit and vegetable market</u>	-	Min 30 feet	A type of building or structure created and designed in various colors, materials, shapes, sizes and styles with the necessary equipment for fruit and vegetables to be transported, stored and sold.
x.	<u>Grain market</u>	-	Min 30 feet	A market where grain is in surplus supply and buyers can obtain at lower prices.
xi.	<u>Cattle market</u>	-	Min 30 feet	A place where farmers buy and sell cattle.
xii.	<u>Oil Depot</u>	-	Min 30 feet	An oil depot is an industrial facility for the storage of oil and/or petrochemical products and from which these products are usually transported to

Permissible Land Uses in Agricultural Area				
				end users or further storage facilities.
xiii.	<u>Rice Mills</u>	-	Min 30 feet	A facility to automate the process of removing the chaff (the outer husks) of grains of rice.
xiv.	<u>Flour Mills</u>	-	Min 30 feet	A building equipped with machinery for grinding grain into flour.
xv.	<u>Cold Storage</u>	-	Min 30 feet	Cold Storage is a large refrigerated room or building designed for storage of goods in an environment below the outdoor temperature.
xvi.	<u>Power Plant</u>	-	Min 40 feet	Power Plant is a facility used to generate electric power with the help of one or more generators which converts different energy sources into electric power.
xvii.	<u>Bird sanctuary</u>	-	Min 20 feet road	An area of land in which birds are protected.
xviii.	<u>Botanical garden</u>	-	-	The premises where plants

Permissible Land Uses in Agricultural Area				
				are grown for scientific study and display to public.
xix.	<u>Park, memorial, monument or play ground</u>	-	Min 30 feet road	-
xx.	<u>Picnic Hut</u>	-	Min 20 feet road	A scenic place where facilities are provided for picnic.
xxi.	<u>Recreational Club or resort</u>	-	Min 40 feet road	-
xxii.	<u>Shooting Range</u>	-	Min 30 feet road	A specialized facility which is equipped with shooting booths.
xxiii.	<u>Swimming Pool</u>	-	Min 30 feet road	-
xxiv.	<u>Library</u>	Min 10 Marla plot	-	A premises or a specified place having a large collection of books for reading and reference for general public or specific class.
xxv.	<u>Zoological garden</u>	Min 1 Kanal plot	Min 40 feet road	A premises where collection of wild animals is kept for public.
xxvi.	<u>Waste treatment plant or dumping sites in deserted areas</u>	-	Min 30 feet road	A treatment plant refers to a plant or installation that is used to purify contaminated substances. These substances may be solid,

Permissible Land Uses in Agricultural Area				
				liquid and semi-solids.
xxvii.	<u>Incineration plant in deserted areas</u>	-	Min 30 feet	Incineration plant means any stationary or mobile technical unit and equipment dedicated to the thermal treatment of wastes with or without recovery of the combustion heat generated.

11. Establishment of Industrial Project and Industrial Estate in Agricultural Area

The request for establishment of industrial project received from any Government department for conversion of land use in agriculture area, not prone to flooding, for special institutional projects pertaining to public and private sector industrial institutions shall be considered by the Authority subject to the following requirements:

- (a) minimum land not less than twenty acres (160 kanal);
- (b) payment of conversion charges applicable at the rate 10% as per valuation table for the intended use of the project;
- (c) Investment excluding land cost is directly proportional or more than the ratio given below:
 - (i) minimum investment of two billion rupees upto twenty acres in District Lahore and one hundred million rupees for each additional acre; and
 - (ii) minimum investment of one billion rupees upto twenty acres in the districts other than District Lahore and fifty million rupees for each additional acre;
- (d) such industry or industrial estate is not hazardous and involves the concepts of industrial ecology and minimizes waste production to biodegradable wastes (which may be used for power generation or as a fertilizer for the adjacent agriculture areas);
- (e) After conversion for Industrial Project, Building Plan shall be approved by the competent authority within a period of two years and for industrial estates the requirement of approval of layout plan and completion of development work will be fulfilled within 03 years by the applicant.

- However, an extension of one year may be granted on the request of the concerned Government institution; and
- (f) The Industrial Project/Industrial Estate shall include twenty trees of native fruits having minimum six feet height per acre in the project area. if the requirement mentioned at (e) above are not fulfilled within prescribed time, 20% of the conversion charges shall be forfeited and remaining shall be released back to the sponsor or Government institution and the land use of the project area shall be reverted to the original use as defined in the master plan.

12. Establishment of Health and Educational Project in Agriculture Area

The request for establishment of health and educational project received from any Government department for conversion of land use in agriculture area, not prone to flooding, for special development projects pertaining to public and private health and educational institutions shall be considered by the Authority subject to the following requirements:

- (a) minimum land not less than ten acres (80 kanal);
- (b) payment of conversion charges applicable as per valuation table for the intended use of the project and no instalment shall be allowed;
- (c) investment excluding land cost is directly proportional or more than the ratio given below:
- (i) minimum investment of two hundred million rupees up to ten acres in District Lahore and ten million rupees for each additional acre; and
- (ii) minimum investment of one hundred million rupees up to ten acres in the districts other than District Lahore and five million rupees for each additional acre;
- (d) after conversion, building plan shall be approved by the competent authority within a period of two years. However, an extension of one year may be granted on the request of the concerned Government institution; and
- (e) the building plan shall include twenty trees of native fruits having minimum six feet height per acre in the project area. After lapse of three years, if the building plan is not submitted to the competent authority for approval, 20% of the conversion charges shall be forfeited and remaining shall be released back to the sponsor or Government institution and the land use of the project area shall be reverted to the original use as defined in the master plan.

13. Notified Area

- (1) The Authority shall ensure strict compliance of the relevant provisions of laws regarding historically significant, environmentally sensitive, public sector institutional, other restricted or an intercity service

areas.

- (2) The permitted, permissible and prohibited uses and restrictions, if any, of the notified area shall have effect notwithstanding the permitted and permissible uses of other land use classes under Chapter II and provisions of temporary commercialization under Chapter VII of LDA Land Use Rules 2020.
- (3) The Authority shall specify permitted and permissible land uses in the following types of the notified area subject to provisions of notifications issued for such notified area:
 - (a) historically significant area;
 - (b) environmentally sensitive area;
 - (c) public sector institutional area;
 - (d) intercity service area; and
 - (e) other restricted area.

14. Clearance of Ambiguity

- (1) In case of any ambiguity in the classification of land use, the matter shall be referred to the Chief Minister Punjab, which shall decide the matter within thirty days from the date of its receipt.
- (2) Authority may permit a land use in any area which is not provided in any of the classifications but such land use shall be near to the land use permitted or permissible in the area.

Chapter III

15. Procedure for Land Use Classification

Same as given in LDA Land Use Rules 2020.

Chapter IV

16. Land Use Re-Classification

Same as given in LDA Land Use Rules 2020.

Chapter V

17. Re-Development Plan

Same as given in LDA Land Use Rules 2020.

Chapter VI

18. Land Use Classification Map, Land Use Reclassification Scheme, Redevelopment Plan, Scrutiny, Approval, Notification and Circulation

Same as given in LDA Land Use Rules 2020.

19. Planning and Design Committee

The planning and design committee shall consist of the following:

(a) <u>Director General, LDA</u>	<u>Chairman</u>
(b) <u>Managing Director WASA</u>	<u>Member</u>
(c) <u>Chief Engineer, TEPA</u>	<u>Member</u>
(d) <u>Chief Metropolitan Planner, LDA</u>	<u>Member</u>
(e) <u>Chief Town Planner of the Authority</u>	<u>Member</u>
(f) <u>Director Law (Supreme Court Section), LDA</u> <u>or Legal Advisor</u>	<u>Member</u>
(g) <u>Director Town Planning (Commercialization),</u> <u>LDA</u>	<u>Secretary</u>
(h) <u>Chief Officer of the concerned district,</u> <u>LG&CD Department</u>	<u>Member</u>
(i) <u>Additional Deputy Commissioner (Revenue)</u> <u>of concerned District</u>	<u>Member</u>
(j) <u>Representative of Secretary (HUD& PHE)</u>	<u>Member</u>
(k) <u>any member co-opted by the committee.</u>	<u>Member</u>

Procedure

- i. Planning and design committee shall perform functions in accordance with the provisions of the rules and regulations.
- ii. The chairman of planning and design committee may convene a meeting of planning and design committee as he may deem necessary, preferably after every 10-days.
- iii. The Planning & Design Committee shall take decision by majority of members present and voting.
- iv. One half of the total membership of the committee shall constitute the quorum of the committee.
- v. Any defect in the constitution or composition of the Committee shall not invalidate any proceedings of the Committee.
- vi. *The secretary of committee will prepare the list of the cases and will get permission from Chairman Committee to call the meeting. After permission from chairman, the secretary will circulate the agenda of the meeting to the members of the committee.***
- vii. Each member of the committee shall liable to verify the information/reports pertaining to the department of concerned member.

20. Grievance Redressal Committee

Any person aggrieved in the matter of fees involving delayed, fortified, chronic litigation cases under LDA Land Use Rules/Policy can apply to the concerned directorate who shall forward the case to following Grievance Redressal Committee to decide the matter of pending cases:

a) <u>DG, LDA</u>	<u>Chairman</u>
b) <u>Anyone Member from Governing Body of LDA,</u> <u>to be nominated by the Authority</u>	<u>Member</u>
c) <u>CMP, LDA</u>	<u>Member</u>
d) <u>CTP, LDA</u>	<u>Member</u>
e) <u>Director Law, LDA</u>	<u>Member</u>

f) Director Finance, LDA	Member
g) Director Town Planning concerned, LDA	Secretary

Procedure

- a) An aggrieved person as per Rule 28 of LDA Land Use Rules 2020 can apply to the concerned directorate for redressal of grievance or the concerned directorate itself can initiate and place the hardship case to the Grievance Redressal Committee.
- b) After receipt of the application, the chairman of the committee may convene a meeting of committee preferably within 21 days.**
- c) Any defect in the constitution or composition of the Committee shall not invalidate any proceedings of the Committee.
- d) The committee may follow the guidelines and mechanism as defined in sub-rule 14 and 16 of Rule 30, LDA Land Use Rules 2020.**

21. Appeal

- (1) A person aggrieved by an action taken by any committee constituted under the regulations, may, within thirty days, file an appeal before the Authority. The Authority shall decide the appeal within sixty days and communicate its decision to the parties.
- (2) An appeal under the regulations shall consist of an application signed by the aggrieved person and include a copy of the valid computerized national identity card of the aggrieved person, a copy of the impugned order and other relevant documents.

Procedure

- a) An aggrieved person as per Rule 29 of LDA Land Use Rules 2020 can apply to the concerned directorate for redressal of grievance or the concerned directorate itself can initiate and place the hardship cases to the Grievance Redressal Committee.
- b) The Concerned staff shall forward the case to Chief Town Planner, LDA in order to seek permission to place the case before LDA Governing Body/Authority.
- c) The Authority may convene a meeting of committee preferably within a month from the date of application/complaint for such cases.
- d) Any defect in the constitution or composition of the Committee shall not invalidate any proceedings of the Committee.

Chapter VII

22. Fee for Conversion of Land Use

The conversion of land use, by preparation, amendment in the master plan, by declaration of peri-urban area under the Lahore Development Authority Master Plan Rules 2014 and by reclassification under Lahore Development Authority Land Use (Classification, Reclassification and Redevelopment) Rules 2009, Punjab Land Use (Classification, Reclassification and Redevelopment) Rules 2009, Land Use Rules 2014 or under the rules and properties falling in list A roads permitted for commercial use shall not entitle any person to use the land for such notified, converted,

reclassified use unless the conversion fee is paid in a manner given hereinafter:

<u>Land use</u>	<u>Rates</u>
(a) <u>on the approved roads as mentioned in list A approved under the land use rules notified from time to time.</u>	(i) <u>20% of the commercial value of the total area of ownership as provided in the valuation table.</u>
(b) <u>upon reclassification under the Lahore Development Authority Land Use Rules, 2009, Punjab Land Use (Classification, Reclassification and Redevelopment) Rules 2009 or under the rules:</u> (i) <u>From peri-urban, residential, agricultural areas to commercial areas.</u> (ii) <u>From residential, agricultural, peri-urban to industrial, institutional (subject to height restriction), intercity service area.</u> (iii) <u>From institutional or industrial and intercity service area to commercial area.</u>	(i) <u>20% of the commercial value of the total area of ownership as provided in the valuation table.</u> (ii) <u>20% of the (intended land use) value of the total area of ownership as provided in the valuation table.</u> (iii) <u>20% of the commercial value of the total area of ownership as provided in the valuation table.</u>
(c) <u>upon declaration of peri-urban area:</u> (i) <u>From agriculture area to residential area.</u> (ii) <u>From agriculture area to commercial area.</u> (iii) <u>From agriculture area to industrial, institutional, intercity services.</u>	(i) <u>20% of the residential value of the total area of ownership as provided in the valuation table.</u> (ii) <u>20% of the commercial value of the total area of ownership as provided in the valuation table.</u> (iii) <u>20% of the commercial value of the total area of ownership as provided in the valuation table.</u>
(d) <u>On permissible uses under clause (b) of sub-rule (2) of rule 3 of LDA Land Use Rules 2020.</u>	(i) <u>20% of the commercial value of the total area of ownership as provided in the valuation table, furthermore, for the projects or uses mentioned under rules 13 and 14 of the LDA Land Use Rules 2020, the fee shall be applicable as mentioned in the relevant rules.</u> (ii) <u>If valuation table is not available for the purposes mentioned under clause (i) above, the average sale price of preceding twelve months of commercial land in vicinity shall be considered.</u> (iii) <u>If the owner of the premises has already paid the conversion fee for intuitional use and intends to get the property commercialized subject to provision of the rules, he shall pay only ten percent commercialization fee on prevailing rates.</u> (iv) <u>If the owner of the premises has already paid the conversion fee and seeks permission for permissible</u>

	<u>use, the conversion fee shall not be applicable.</u>
(e) <u>Upon declaration of residential-cum-commercial zone under sub-rule (12) of rule 37 of LDA Land Use Rules 2020.</u>	<u>10% of the commercial value of the total area of the ownership, as provided in the valuation table.</u>

Note: In valuation table the column existing about covered area charges are not applicable.

In the case, if the rate of any parcel of land is not available in the valuation table as per clause (a) and (d)(ii), the land use conversion charges will be calculated on the basis of the formula given in the DC Valuation table and the higher rates to be calculated/observed will be applicable on that parcel of land.

Furthermore, in the case of land use conversion of amalgamated plots, the rate will only be applicable on the additional area to be amalgamated in already commercialized/converted property. The conversion rates will be applicable with respect to the rate of the abutting property on the road.

In case of Khasra number(s) which are/is considered to be commercialized for a road in List-A, the conversion charges on all khasras will be applicable at the rate of the abutting khasra on the road.

Scrutiny Fee

The Scrutiny fee for the cases mentioned in sub-rule (1) of LDA Land Use Rules 2020, shall be levied as follows:

(a)	up to 1 kanal	Rs. 5,000
(b)	more than 1 kanal up to 2 kanal	Rs. 10,000
(c)	above 2 kanal	Rs. 20,000
(d)	area development project	Rs. 50,000
(e)	sub-division of area development project	Rs. 100,000 per Kanal

Exemption of Fee to philanthropic/ Charitable NPO

The Authority shall not levy conversion fee except scrutiny fee for the conversion of land use to an educational or a healthcare institutional use if the proposed educational institution or healthcare institution:

- is owned by a philanthropic, charitable or non-profit organization duly registered by the FBR; and
- provide undertaking that the organization shall provides services to the needy or the poor, free of cost or on no profit basis, in case of any violation, the offer shall stand withdrawn and fine/penalty shall be imposed as decided by the Authority

In Case Property is Rented

In case, the property is rented, the Authority may, subject to fulfillment of conditions mentioned above and provision of valid lease agreement, allow for use of such property as educational and healthcare institution, orphanage, philanthropic, charitable or not-for-profit organization, without levy of conversion fee. The Authority may also, on the request of the institution and on the production of the valid lease agreement, grant annual renewal of such permission.

Payment of Fee in Instalments

- After submission of 20% lump sum fee to Authority, the Authority may allow payment of remaining fee in seven

- equal installments ,once over a period of two or three years. In case of three years installment plan, the case shall be forwarded to the Director General, of the Authority for approval and the stipulated time period shall start from the date of issuance of 1stdemand challan.
- b) In case of no installment, full conversion fee shall be deposited within one year subject to sub-rules (10), (11) and (12) of the rule 30 of LDA Land Use Rules 2020. In case of full payment within forty-five days of the issuance of 1st demand challan, a rebate of 5% in the conversion fee shall be given to the applicant. The stipulated time period shall start from the date of issuance of 1stdemand challan.
- c) The building plan of the proposed commercial building may be sanctioned and released upto plinth level on payment of first installment of commercialization fee. The plans upto thirty-eight feet height may be released after payment of further three installments and the plans above thirty-eight feet height may be released after payment of complete installments of commercialization fee.
- d) The owner may provide bank guarantee of each installment of commercialization fee in line with the payment schedule and get the release of sanctioned building plan and as soon as the installment of commercialization fee is paid, the bank guarantee may be released in proportionate to the fee deposited.
- e) In case of default of payment of one or more installments of land use conversion fee, the competent authority shall impose a surcharge @ 1.5% per month, on the delayed amount of fee from the date of default till the date of payment.

Provision of Extended Time Period Facility to Pay Conversion Fee

- a) In case of no installment plan, if the owner does not deposit any conversion fee within forty-five days mentioned on 1st demand challan, he may be allowed once to pay the fee within extended period of forty-five days. Extension period shall start from the due date as mentioned in the 1st demand challan. If the no payment is made in the extended time period:
- (i) no surcharge shall be levied but conversion fee at prevailing DC rate shall be charged, if fiscal year has lapsed; or
- (ii) surcharge @17.5% per annum shall be levied from due date of issuance of 1stdemand challan, if fiscal year has not lapsed.
- b) If owner applies for instalments before the expiry of 1stdemand challan, time period passed before such request of installments shall be deducted from the time mentioned in sub-rule (5) of the rule 30 of LDA Land Use

Rules 2020. After expiry of 1st demand challan, request for instalments shall not be entertained.

Applicability of Surcharge / Forfeiture of Conversion Fee

- a) In case of payment of full conversion fee in partial manner in the time frame as given in sub-rule (6) of rule 30 of LDA Land Use Rules 2020, the surcharge @17.5% per annum shall be levied from the due date mentioned in 1st demand challan.
- b) In case of failure of payment of full conversion fee in the time frame as given in in sub-rule (6) of rule 30 of LDA Land Use Rules 2020, the competent authority, besides withdrawal of offer of conversion of land use, shall forfeit 20% of the deposited fee and remaining fee shall be refunded on demand by the applicant. However, the owner may submit a fresh application for change of land use as per prevalent rules and in such case the forfeited fee shall not be adjusted in any manner.
- c) The cases of land use conversion in which advance payment has been made prior to enforcement of the rules but not approved by the competent authority, such cases shall be treated on the basis of DC rate prevalent at the time of submission of advance payment. The deposited amount shall be adjusted and a surcharge of 10% per annum shall be levied on the remaining amount till date of issuance of challan. The remaining amount shall be paid within three months from the date of issuance of challan and in case of failure, 20% of already paid amount shall be forfeited.
- d) In case, approval of conversion or permission for land use of a property is granted, the owner or occupier shall display a copy of approval letter on such property.

Mechanism for disposal of delayed/time barred/forfeited cases

The following mechanism shall be adopted for the disposal of delayed/default payment, time barred and forfeited cases or any other pending case prior to the rules:

- a) on submission of application within one year of the enforcement of the rules, the cases processed before the notification of the rules, the owner or applicant shall be required to deposit the remaining original amount applicable at the time of approval along with a surcharge of 10% per annum within three months, and in case of failure, 20% of already paid amount shall be forfeited. Remaining amount, if any, shall be refunded on the request of the owner or applicant. Thereafter, if the owner or applicant intends for conversion, he shall apply afresh subject to payment of the conversion fee as per the prevailing rules. However, forfeited fee shall not be adjusted in any manner.

- b) the cases for annual commercialization in which demand has already been raised under the repealed Lahore Development Authority Land Use Rules 2014 but the payment has not been made, a surcharge of 17.5% per annum shall be levied.

Fee for Educational and Health Care Institutions

Notwithstanding anything contained in sub-rule (1) of the rule 30 of LDA Land Use Rules 2020, the fee for conversion of land use for educational or healthcare institutions shall be as under:

- (a) 10% of the commercial value of the total area of ownership as provided in the valuation table; or
(b) 10% of the average sale price of commercial land in the vicinity during the preceding twelve months, if valuation table is not available.

23. Challan Generation

Challan of Permanent Commercialization Fee

- (i) After approval of commercialization/change of land use from the Competent Authority, Assistant Director/Dy. Director Town Planning may forward the case with filled SAP Performa to Deputy Director (Revenue), LDA for generation of challan of commercialization fee.
- (ii) The Deputy Director (Revenue), LDA shall forward the case to Assistant director (Revenue)/Senior Accountant for verification of commercial rates within a day.
- (iii) After Verification of Commercial Rates and necessary calculations, Assistant Director (Revenue) will generate the challan and forward to Deputy Director (Revenue) for approval and signature within two days.
- (iv) The Deputy Director (Revenue) will check and forward the challan after signature to Deputy Director Town Planning within one day.

Challan of Annual Commercialization Fee

- (i) After approval of commercialization/change of land use from the Competent Authority, Assistant Director/Dy. Director Town Planning may forward the case with filled SAP Performa to Deputy Director (Revenue), LDA for generation of challan of commercialization fee.
- (ii) The Deputy Director (Revenue), LDA shall forward the case to Assistant director (Revenue)/Senior Accountant for verification of commercial rates.
- (iii) After Verification of Commercial Rates and necessary calculations, Assistant Director (Revenue) will generate the challan and forward to Deputy Director (Revenue) for approval and signature.
- (iv) The Deputy Director (Revenue) will check and forward the challan after signature to Deputy Director Town Planning.

Calculation of Late Payment Surcharge

- (i) The Deputy Director (Revenue) and his/her staff will calculate the late payment surcharge and forward the case to concerned directorate of Town planning for the SAP Performa/ C.P.*
- (ii) The Assistant Director/Dy. Director Town Planning may forward the SAP Performa/C.P. on recommendations of Deputy Director (Revenue).
- (iii) After receiving the detail of property through SAP Performa/C.P., Deputy Director (Revenue) will issue challan of Late payment surcharge and forward to concern directorate.

Reversal of Challan

The Deputy Director (Revenue), LDA shall have authority to reverse the challan in case:

- (i) In case owner paid the fee through pay order and original challan stands unpaid
- (ii) In case competent authority approve the instalments and challans of instalments are issued but original challan stands unpaid
- (iii) In case applicant withdrew the commercialization and original challan stands unpaid

Extension of Challan

The Deputy Director (Revenue), LDA shall extend the challan on the request of Deputy Director Town Planning, LDA as and when required under these regulations and LDA Land Use Rules 2020.

Cancellation of Challan

The Deputy Director (Revenue), LDA shall cancel the challan on the request of Deputy Director Town Planning, LDA as and when required under these regulations and LDA Land Use Rules 2020.

Calculation of Penalty

The Deputy Director (Revenue), LDA shall issue challan of penalty in following manner:

- (i) The Assistant Director/Dy. Director Town Planning forward the case to Dy. Director (Recovery) for the report to calculate the days till the illegal commercial use.
- (ii) The Dy. Director (Recovery) may after seeking the report from the staff and forward back to Dy. Director Town Planning.
- (iii) The Dy. Director Town Planning forwards the same to Dy. Director (Revenue) for issuance and calculation of penalty as per rate mentioned earlier.

24. Betterment Fee

Same as given in LDA Land Use Rules 2020.

25. Prohibition

Same as given in LDA Land Use Rules 2020.

26. Temporary Commercialization

(1) The Authority shall not entertain any fresh application for grant of temporary or annual commercialization permission.

(2) Already approved temporary or annual commercialized property shall be eliminated gradually and the temporary or annual commercialization shall be phased out till 30.06.2024.

(3) The owner or occupant of temporary or annual commercialized property shall provide consent or undertaking in writing that he shall eliminate the commercial activity before 30.06.2024.

- i. The renewal will be granted upon provision of undertaking/written consent to eliminate commercial activity as prescribed earlier.

(4) The fee for temporary or annual commercialization shall be charged on annual basis at the rate of 1.25% commercial value of the total land owned as per prevailing valuation table and for educational/health, the fee shall be charged 50% of Temporary commercialization fee.

(5) The fee shall be payable in two equal installments during a financial year and in case of non-payment of fee within the stipulated time, a surcharge at the rate of 17.5% per annum shall be levied.

(6) The owner or occupant of temporary or annual commercialized property shall fulfil the parking requirements as per building regulations, if any. A grace period of one year may be given to the owner or occupant for arranging the parking; otherwise the Authority shall cancel the permission immediately. Further details as given in LDA Land Use Rules 2020.

Chapter IX

27. Miscellaneous

Same as given in LDA Land Use Rules 2020 adding with:

Uses allowed in List-A Roads

The List-A roads are allowed for the change of land use both permitted and permissible as per the procedure defined in the rules and regulations.

For List –A road, uses defined alongwith List will be considered as commercial uses of that road including the uses allowed as per Rule 5 of LDA Land Use Rules 2020.

Amalgamation of Plots

In cases where the commercialization have already been allowed prior to notification of the rules, amalgamation of adjacent plots up to a maximum of equal area may be allowed once either on sides or back of the existing or constructed commercial or health or educational buildings having different land uses falling on list 'A' roads. Similarly, the properties falling on list 'B' roads may be approved by the Authority on case to case basis. The conversion fee shall be applicable along with following conditions:

- (a) the building regulations shall apply;

- (b) in case the adjacent plot is at the back of the existing plot, the entry or exit shall be allowed from front only;
- (c) in case of existing building or structure with illegal land use, it may be allowed to be amalgamated after payment of penalty as determined by the Authority; and
- (d) fee shall be charged at the rate of 20% of the commercial value of the total area of ownership as provided in the valuation table and for educational and healthcare institutions fee shall be charged at the rate of 10% of the commercial value of the total area of ownership as provided in the valuation table.
- (e) In case plot/property falling on Canal Road (from Thokar to Jallo), amalgamation of plot in the direction of canal road shall not be allowed.
- (f) the amalgamation shall be allowed only if the additional land falls in same scheme (private or regular) or same area (controlled area other than private or regular scheme).

Uses of Industrial Estates and Industrial Plots

The Industrial plots falling in industrial estates and any approved scheme shall not be converted to any other use. The uses of such plots shall be same as defined in the industrial estate and approved scheme plan.

Fee on Zones of Master Plan

The conversion fee shall not be charged on permitted uses of different zones of Master Plan as defined in different land use classes of LDA Land Use Rules 2020.

Jurisdiction

The jurisdiction of Lahore Development Authority is whole Lahore Division except the Lahore Cantonment Area, Walton Cantonment Board area, DHA or any other restricted area if any.

Reclassification and Master Plan uses

The uses defined in different Land Use Classes in LDA Land Use Rules 2020 shall be applicable for Master Plan as well as Reclassification plan.

Interpretation

Governing Body may take suitable decisions on any matters arising as a result of doubtful interpretation of Land Use Regulations or such matters, which may not have been specifically covered in them.

Delegation

The Authority may delegate all or any of the powers as laid down in Building Regulations to any of its officers for the purposes of their implementation.

Status of Land in River Ravi Urban Development Project

The land which falls in notified area of River Ravi Urban Development Project shall not be allowed for change of land use.

Gulberg Re-classification

Land Use Re-Classification map of Gulberg Scheme has been notified under rule 42 of Land Use (Classification, Reclassification and Re-development) Rules 2009 vide notification no.TP/LDA/590-S/CMP/152dated01-02-2012 with different height restrictions in different zones i.e. institutional Zone (health, education, offices with max height 70 Ft) in Dark Pink color and institutional Zone (health, education, offices etc with max height 38 Ft) in Light Pink color was allowed. Now, height of the buildings will be applicable as per prevailing building and zoning regulations.

In addition to the uses highlighted in the Re-classification map of Gulberg Scheme, permitted, permissible and prohibited uses mentioned in the Land Use Rules 2020 shall be allowed subject to the payment of conversion fee.

28. Regulations for Area Development Project

"Area Development Project" means a project on an area of more than 24 Kanals but less than 200 Kanals in areas other than approved schemes (as mentioned in residential, commercial, institutional and mixed land use classes under the rules) and also in list-A roads wherein all permitted, permissible and mixed use can be allowed except industrial uses and hazardous or environment sensitive uses with certain conditions and standards as prescribed under the rules, Building and Zoning Regulations and planning and design committee to seek approval from the Authority

Area development project will be allowed in areas as mentioned in LDA Land Use Rules 2020. Specifications regarding area development project are mentioned as under:

- i. Plot size for such project shall be more than 24-K and not more than 200-K
- ii. The minimum Right of Way (ROW) shall be 80 feet and for established builtup area the same shall be 60 feet.
- iii. It is a premises used for mix land uses except industrial land uses
- iv. ***The area development project may be executed as a single project or sub-divided after submission of case to Metropolitan Planning Wing on payment of scrutiny fee. The Deputy Director, Metropolitan Planning shall forward the case to the Director, Metropolitan Planning with the recommendations for approval. Sub-division may be allowed by the DG, LDA once with the following conditions:***
 - (a) minimum plot size after sub-division is not less than four marla;
 - (b) internal road circulation between plots is not less than forty feet;
 - (c) parking area of a minimum thirty feet is given in front of plots;
 - (d) minimum 5% of the area is used for open space;
 - (e) at least 1% of the total area is used for public utilities and amenities;

- (f) building regulations of civic center shall be applicable after leaving mandatory open spaces and building line of the main plot;
 - (g) for area or pocket of land falling within the boundary of private housing scheme, no objection certificate from sponsor or management shall be mandatory;
 - (h) construction in area development project shall be multi-storey and multi-purpose; and
 - (i) Commercialization charges for area development project falling in commercial zone shall be payable if not already paid.
- v. Mandatory Spaces should be provided first and sub-division shall be allowed on the resultant plot.
 - vi. In case of sub-divisions in the Area Development Project, the building regulations shall be applicable on the resultant plots and road width.
 - vii. In case property falls on List-B Road, then the case shall be treated as per zone in which the property falls.
 - viii. In case of single project, the category of sky-scraper can be achieved regardless of the Right of Way (ROW).
 - ix. Special building regulations for for plots having 2-kanal upto 25-kanal

Plot Size	2-Kanal to 4-Kanal	Above 4 Kanals to less than 25 Kanals
Height	As per Special Building Regulations of FTC, Johar Town, Lahore	
Building Line	30-ft	30-ft
Rear	5-ft	15-ft
Ground Floor Coverage	60%	60%
Floor Area Ratio	1:8	1:8
Side space	7-ft (one sharing side)	10-ft (one sharing side)
Parking	As per already approved Special Building Regulations of FTC. The Entrance and Exit of the vehicle for parking in the building will be provided through 18 feet wide passage given in the layout plan at the back of the plots	As per already approved Special Building Regulations of FTC

- x. Special building regulations for for plots having 25 kanal & above area

Plot Size	25-50 Kanals	Above 50-Kanals
Height	As per height fixed by the Civil Aviation Authority	
Building Line	40-ft	50-ft
Ground Floor Coverage	60%	60%
Rear	20-ft	30-ft
Both Side	20-ft	30-ft
Floor Area Ration	1:10	1:12

Note: Apart from Special Regulations, all other provisions of prevailing Building Regulations shall remain applicable

Procedure

- a) The cases related to Area Development Project shall be forwarded after fulfilment of all codal formalities to Planning & design Committee for appropriate decision.
- b) Planning & Design Committee may recommend the case to Authority for final approval if found correct.
- c) The Authority/LDA Governing Body if satisfied may grant final approval.**
- d) After approval from LDA Governing Body, challan of conversion fee will be issued at the rate of 20%

29. The Special Commercialization Committee

The following special commercialization committee is constituted who shall give its recommendations to the Authority for review of declared frozen road(s) and reclassification of new road(s):

- | | |
|--|---------------|
| (a) Director General, LDA | Chairman |
| (b) Deputy Commissioner of concerned district | Member |
| (c) Chief Traffic Officer of concerned district | Member |
| (d) Chief Metropolitan Planner, LDA | |
| (e) Chief Engineer, TEPA | Member |
| (f) Managing Director, WASA | Member |
| (g) Chief Town Planner, LDA | Member |
| (h) Representative of Secretary (HUD & PHE) not below the rank of BS-18 | Member |
| (i) Representative of Secretary LG&CD Department not below the rank of BS-18 | Member |
| (j) any co-opted member(s) to be nominated by the committee /Authority. | Member |

30. Review of Frozen Roads (procedure)

- a) In the case of LDA approved regular schemes, the procedure of classification and reclassification of LDA Land Use Rules 2020 shall be adopted. Whereas, in areas other than LDA approved regular schemes, the committee shall review the frozen roads/segments of the roads.**

- b) The chairman of committee may convene a meeting of as he may deem necessary.
- c) Any defect in the constitution or composition of the Committee shall not invalidate any proceedings of the Committee.
- d) The committee shall conduct survey of frozen roads and identified the properties converted legally or illegally to commercial use.
- e) The Authority shall conduct survey of the listed roads and identify the properties legally or illegally converted to commercial use.
- f) The Special Committee shall review the listed roads and shall:
 - i. Assess and decide the suitability for placing the road in a notified category of land use; and
 - ii. Identify any restrictions to be imposed on any of the selected road regarding minimum size of plot, type of commercial activity, building height, building line or any other design parameters.
- g) The Special Committee may keep in view the following factors for deciding the future use of the listed roads:
 - i. potential for up gradation of serving road network;
 - ii. potential for up gradation of existing infrastructure;
 - iii. traffic impact assessment;
 - iv. trend of changes in the existing land uses;
 - v. market demand for change of land use in the area;
 - vi. compatibility with adjoining land uses; and
 - vii. consultation with the stakeholders.
- h) The Special Committee shall forward the recommendations to the Governing body of the Authority about:
 - i. List A Roads or segments of Roads which may be permitted for future commercial use with or without any restrictions; and
 - ii. The remaining frozen roads not allowed for any commercial use, shall be considered as per original landuse of the Scheme Plan/Master Plan.

31. Residential Cum-Commercial

The Authority may declare any area(s) as residential-cum-commercial zone in LDA approved schemes or its controlled area. The properties falling in such zones will be allowed to use building as commercial on lower ground or ground and residential on upper floors. Furthermore the height of building

shall not exceed forty-eight feet and provision of parking and other standards shall be decided by the Authority.

Procedure

1. Permission may be sought from the Authority for declaration of any area as residential cum-commercial zone in LDA Controlled area.
2. Following procedure may be adopted for conversion as residential cum commercial area::
 - a) Survey of project area and identify the properties legally or illegally converted to commercial use.
 - b) Survey of project area and identify the height of building and No. of storeys.
 - c) potential for up gradation of serving road network;
 - d) potential for up gradation of existing infrastructure;
 - e) traffic impact assessment;
 - f) trend of changes in the existing land uses;
 - g) market demand for change of land use in the area;
 - h) compatibility with adjoining land uses; and
 - i) consultation with the stakeholders.
 - j) Public Consultation:
 - i. The Authority shall invite objections or suggestions by giving public notice indicating the proposal for project area, to the key stakeholders of the area and in at least two leading national Urdu and one national English newspapers;
 - ii. The Authority shall arrange seminar on a specified date, time and place.
 - k) The Chief Town Planner shall forward the proposed plan of residential Cum-Commercial zone along with recommendations to Planning & Design Committee which may either recommend the proposal or propose amendments.
 - l) After the approval from the Planning & Design Committee, the proposal shall be forwarded to the Authority for approval and the Authority may approve, amend, defer or refer back for amendments.
 - m) The Authority shall forward the approved plan for Gazette Notification.

36. Building Line

The Authority shall fix a building line in a land use reclassification scheme which shall not be less than:

- (a) the building line specified in the building regulations;
- (b) thirty feet along a road with right of way of eighty feet and above; and
- (c) maximum prescribed building line of original plot; and

- (d) ten feet along any other road.

The Authority shall fix a building line/setback in case of land use conversion on List-A Roads which shall not be less than:

- (a) as mentioned in Notifications of List-A
- (b) if the setback didn't mentioned in List-A then:
 - i. on a road having right of way less than 80 feet, the setback shall be 20 feet
 - ii. on a road having right of way more than 80 feet, the setback shall be 30 feet

The Authority shall fix a building line/setback in case of land use conversion for permissible uses other than List-A Roads as per prevailing building regulations.

37. Industrial Conversion

- i. An implementation Committee was constituted by the orders of Chief Minister, Punjab on 12.05.2017 with following members:
 - 1. The Chief Secretary, Punjab (In Chair)
 - 2. The Secretary Industries Commerce and Investment Deptt., Punjab
 - 3. The Secretary Local Govt. and Community Development, Deptt. Punjab
 - 4. The Commissioner, Lahore Division
 - 5. The Director General, LDA, Lahore
 - 6. The President Lahore Chamber of Commerce & Industries
 - 7. The General Manager (Planning & Design), PIEDMC
 - 8. Member of P&D Board
- ii. The Implementation Committee in its meeting held on 10.06.2017 under the chairmanship of Chief Secretary, Punjab decided the following, for action by LDA

Sr. No.	ISSUE	DISCUSSION/DECISION
1.	Master Planning of Industries Areas for Lahore Division	The Master Planning of new industrial zones as approved by the Chief Minister, Punjab vide his order dated 12.05.2017 contained in the summary shall be initiated forthwith.

2.	Regularization of existing industries outside Industrial Zone	It was discussed and agreed to regularize the unapproved existing industries which were established outside the industrial zones provided the owners possess valid title documents for industrial purpose registered prior to the cut-off date fixed i.e. 1 st May 2017, subject to payment of prescribed fee and conversion charges
3.	Extension/addition and alteration of existing industries	It was discussed and agreed to entertain extension/addition alteration of building plans of existing industries provided the owners possess valid title documents for industrial purpose registered prior to the cut-off date i.e. 1 st May 2017, subject to payment of prescribed fee.
4.	Approval of Building Plan on adjacent land of existing industries	It was discussed and agreed to approve the building plan for industries on the land adjacent to existing industries subject to condition that the owners possess valid title documents for industrial purpose registered prior to the cut-off date fixed i.e. 1 st May 2017 and on payment of prescribed fee and conversion charges of the adjacent land.
5.	Accommodation of land purchased for Industrial purpose prior to cut-off date	It was discussed and agreed that the owner who had purchased land for industrial purpose outside the approved industrial area/zone may be considered. But those will be considered by the Implementation Committee as special cases. However, the investor must possess valid ownership of land purchased for industrial purpose and registered before the cut-off date i.e. 1 st May 2017, subject to payment of prescribed fee and conversion charges.
6.	Shifting of Hazardous & Dangerous Industries	The Secretary, IC&I highlighted that the Urban Unit has been entrusted with the task of geo-tagging of existing industries in Punjab which is likely to be completed by the end of the current year which will help in determine the dangerous and

		hazardous industry shall be shifted gradually in the new areas/zones and industrial estates.
7.	Residential Housing Scheme in Industrial Zones	It was discussed and agreed that residential housing scheme/colonies shall not be entertained for approval if the proposed land falls in approved industrial zones.
8.	Rules for Industrial Estates	The DG explained that LDA Private Housing Scheme Rules 2014 do not contain any provision for development of industrial estates be private developers. The chair directed to frame the rules in this regard.
9.	Relocation Policy	A comprehensive relocation policy with phased approach shall be forwarded for relocation of industries to the designated industrial zones. In this regard the chair directed the Industries Department to take lead and directed LDA to facilitate. The Industries Department shall coordinate for formulation and implementation of the relocation policy. (Action taken by IC&I Department)

iii. The Authority in its meeting held 28.01.2020 discussed the matter regarding Master Planning Industrial Areas for Lahore Division and Implementation of the decision of Implementation Committee and made following decisions:

- The ownership in the name of industry irrespective of use indicated in the sale deed/ownership documents executed prior to the cut-off date 01.05.2017, registered with SECP or record of 03-years audited accounts for sole proprietorship will be mandatory for considering it for industrial purpose.
- Processing of case falling on List-A Roads approved as per rules wherein Industrial units are permitted or permissible under the notified roads lists and do not fall under purview of implementation committee.
- DG, LDA will move a summary to the Chief Minister regarding decision for application of appropriate conversion fees to the industries after taking up matter with the stakeholder.

38. Relaxation of regulations.- No provision of the regulations shall be relaxed in any circumstances.

DRAFT NOT APPROVED